

Cobalt River Credit Facility - Amendment No. 2

Amendment 2

Signed 2026-10-13. The amendment becomes effective 2027-01-01. On that effective date only, the notice period in Section 4 will become 45 days.

Termination Right

Beginning 2027-01-01, Party A may terminate for convenience on 90 days written notice. Before that date, the original termination rules as otherwise amended remain in force.

No Other Change

Amendment No. 1 remains effective except to the extent Amendment No. 2 expressly changes a provision on its effective date.

General Provision GP-01

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-01 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-02

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-02 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-03

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-03 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-04

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-04 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-05

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-05 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-06

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-06 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-07

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-07 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-08

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-08 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-09

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-09 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-10

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General Provision GP-11

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-11 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.

General Provision GP-12

For purposes of this synthetic agreement, the parties will maintain complete written records concerning performance, notices, approvals, invoices, and changes. No statement in General Provision GP-12 modifies a specific commercial term stated elsewhere unless an amendment expressly identifies the affected section. Headings are for convenience only. Administrative renumbering, pagination, typography, and corrected spelling do not by themselves alter substantive obligations.